APPLICATION UNDER THE RIGHT TO INFORMATION ACT, 2005

Section 6(1) read with Section 6(3) | Statutory Registry — Public Authority under SARFAESI Act 2002 | Technical Rules and Transaction Records

CERSAI — Central Registry of Securitisation Asset Reconstruction and Security Interest of India

STATUTORY BASIS OF CERSAI'S RTI OBLIGATION: CERSAI (Central Registry of Securitisation Asset Reconstruction and Security Interest of India) is a public authority within the meaning of Section 2(h) of the Right to Information Act, 2005, being a body established by the Central Government under Section 20 of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (SARFAESI Act). As a statutory public registry created by an Act of Parliament, CERSAI is fully subject to the RTI Act, 2005 and is required to appoint a CPIO and provide information in accordance with the Act.

TO — CENTRAL PUBLIC INFORMATION OFFICER

The CPIO, CERSAI — Central Registry of Securitisation Asset Reconstruction and Security Interest of India Tower 1, Office Block, 4th Floor, Plate-A, Adjacent to Ring Road, NBCC, Kidwai Nagar (East), New Delhi — 110 023.

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PART I — PARTICULARS OF THE APPLICANT

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Citizenship	Indian Citizen
BPL Status	No
RTI Fee	Rs. 10/- enclosed — Indian Postal Order / Online Payment
Mode of Receipt of Information	By Post AND by Email to above address
Mode of Receipt of Certified Documents	By Speed Post to above address

ELIGIBILITY AND LOCUS STANDI OF APPLICANT

The Applicant is a citizen of India and is entitled under Section 3 of the Right to Information Act, 2005 to seek information from any public authority. Section 6(2) of the Act expressly and unconditionally provides that an applicant shall not be required to give any reason for requesting information or any other personal details except those necessary for contacting him. The CPIO is respectfully reminded of this mandatory provision.

CERSAI is a statutory public registry. All rules, regulations, technical standards, operational guidelines, and transaction records maintained by CERSAI in the discharge of its statutory functions under the SARFAESI Act, 2002 and the CERSAI Regulations are public information within the meaning of Section 2(f) of the RTI Act. No exemption under Section 8 is available in respect of CERSAI's own operating rules and technical standards.

PART II — SUBJECT OF THIS APPLICATION

SUBJECT: (A) The technical rules, regulatory provisions, and operational procedures governing the display of the message 'All Security Interest(s) are either Satisfied or De-

registered for the Selected Asset ID' on the CERSAI public search portal; AND (B) Transaction records for specific CERSAI Asset IDs in respect of which this message was displayed to the Applicant on 02-06-2026.

PART III — FACTUAL CONTEXT FOR THIS APPLICATION

On 02-06-2026, the Applicant conducted a Debtor Based Search on the CERSAI public portal (www.cersai.org.in) using CIN U27203GJ2011PTC065583. The search returned three Asset IDs associated with the debtor entity over immovable property at Survey No. 124, Plot/Block No. 152, Kural Village, Padra Taluka, Vadodara, Gujarat:

Asset ID 200000693841	Survey 124, Plot 152 — Eastern Portion — Area 3456.88 sq.m. — Portal message: 'All Security Interest(s) are either Satisfied or De-registered for the Selected Asset ID'
Asset ID 200000694206	Survey 124, Plot 152 — Western Portion — Area 2846.12 sq.m. — Portal message: 'All Security Interest(s) are either Satisfied or De-registered for the Selected Asset ID'
Asset ID 200003766496	R.S. No. 124, Block No. 152 — Whole Plot — Area 6303 sq.m. — Satisfaction Status: NOT SATISFIED — downloadable report generated

For Asset ID 200003766496, the CERSAI portal generated a full downloadable Asset Based Search Report. However, for Asset IDs 200000693841 and 200000694206, the portal displayed only the message ***'All Security Interest(s) are either Satisfied or De-registered for the Selected Asset ID'*** — and **did not** generate **any** downloadable report, preventing the Applicant from obtaining any details of the security interest, the charge holder, the secured amount, or **the date and manner of** satisfaction **or** de-registration.

The Applicant seeks **both the** technical rules governing **this** portal behaviour **AND** the underlying transaction records **for these two** Asset IDs, so as to obtain complete and authoritative information about the security interests registered against this property.

PART IV — SPECIFIC INFORMATION SOUGHT

A. TECHNICAL RULES AND REGULATORY PROVISIONS GOVERNING THE PORTAL MESSAGE

1. **The precise technical rule, CERSAI Regulation, or operational guideline that governs when the portal displays the message 'All Security Interest(s) are either Satisfied or De-registered for the Selected Asset ID' — specifically:**
   a) Under what exact condition or event does this message get triggered — **is it** triggered **by a** formal Satisfaction **of** Security Interest filing **by the** charge holder, **by a** De-registration filing, **by both, or by any other** administrative action?
   b) **Is** 'Satisfied' **and** 'De-registered' recorded **as two** distinct events **in** CERSAI's database — and **if so, what is the** precise difference **between them in** terms **of the** underlying transaction **and the party who can** initiate **each**?
   c) **Is** there **a** specific form number, transaction type, **or** portal workflow associated **with each** — satisfaction **and** de-registration — **and if so**, **what are those** form numbers **and** workflow descriptions?
2. **The specific provision of the CERSAI Regulations, 2011 (or any amendment thereto) or the Security Interest (Enforcement) Rules, 2002, or any circular, notification, or guideline issued by CERSAI, under which a charge holder is obligated to register satisfaction of a security interest on CERSAI — and the time period within which such registration is mandatory.**

3. **Whether a borrower (as opposed to the charge holder) can independently file a satisfaction or de-registration on CERSAI — and if so, under what conditions and what procedure.**
4. **Whether any party other than the charge holder or borrower — such as a court, tribunal, regulatory authority, or CERSAI itself — can cause a security interest to be marked as 'Satisfied' or 'De-registered' on the portal — and if so, under what conditions.**
5. **The penalty or consequence, under CERSAI Regulations or the SARFAESI Act, for a charge holder who fails to register satisfaction of a security interest within the prescribed time period after the underlying loan has been discharged.**
6. **Whether CERSAI has the authority and/or the practice of proactively marking a security interest as 'De-registered' in the absence of a formal satisfaction filing — for example, after a certain period of inactivity, upon the company being struck off, or upon any other administrative trigger. If yes — a copy of the circular, notification, or policy document authorising such administrative de-registration.**

B. WHY THE PORTAL DOES NOT GENERATE A DOWNLOADABLE REPORT FOR SATISFIED / DE-REGISTERED ASSETS

7. **The reason why the CERSAI portal does not generate a downloadable Asset Based Search Report for Asset IDs where all security interests are satisfied or de-registered — whereas it generates a full downloadable report for assets with unsatisfied security interests.**
8. **Whether CERSAI maintains an internal database record of the security interests that have been satisfied or de-registered — including the details of those security interests (charge holder name, secured amount, creation date, satisfaction date, de-registration date, and the identity of the entity that filed the satisfaction or de-registration). If yes — the procedure by which a citizen can obtain these records, whether through RTI, a formal written request to CERSAI, a court order, or any other mechanism.**
9. **Whether any alternative search method on the CERSAI portal — such as searching by Security Interest ID, Transaction ID, or Charge Holder name — would return the historical details of a satisfied or de-registered security interest. If yes — the exact procedure for conducting such a search.**

C. TRANSACTION RECORDS — ASSET IDs 200000693841 AND 200000694206

These two items are the most critical. For Asset IDs 200000693841 and 200000694206, the portal shows 'All Security Interest(s) are either Satisfied or De-registered' but generates no downloadable report. The Applicant formally requests the underlying transaction records from CERSAI's database.

10. **For CERSAI Asset ID 200000693841 — from CERSAI's internal database records:**
    - **a)** The name of the charge holder (lender / bank) who created the security interest under this Asset ID.
    - **b)** The date on which the security interest was created in the bank and the date on which it was registered on the CERSAI portal.
    - **c)** The total secured amount registered under this Asset ID.
    - **d)** Whether the security interest was marked as 'Satisfied' or 'De-registered' — and the specific event that triggered this status.
    - **e)** The date on which the satisfaction or de-registration was recorded on the CERSAI portal.
    - **f)** The CERSAI Transaction ID associated with the satisfaction or de-registration filing.
    - **g)** The name and identity of the entity (charge holder, borrower, court, or other) that filed the satisfaction or de-registration.
11. **For CERSAI Asset ID 200000694206 — from CERSAI's internal database records — the same seven items as above (a) through (g).**

12. **A certified extract or system-generated record from CERSAI's database confirming the satisfaction/de-registration details for both Asset IDs 200000693841 and 200000694206 — in whatever form CERSAI maintains such records — to be provided to the Applicant by Speed Post.**

D. COMPLIANCE MONITORING — ASSET ID 200003766496

13. **Whether CERSAI has any mechanism to flag or monitor security interests that have remained in 'Not Satisfied' status for an extended period — for example, beyond 10 years — and if so, whether Asset ID 200003766496 (registered 19-10-2012, Satisfaction Status: Not Satisfied as of 02-06-2026 — over 13 years) has been flagged under any such mechanism.**
14. **Whether CERSAI has communicated with the charge holder for Asset ID 200003766496 regarding the obligation to file satisfaction — and if so, certified copies of any such communications.**

PART V — LEGAL BASIS AND BINDING SUPREME COURT AUTHORITY

STATUTORY BASIS

This application is filed under Section 6(1) of the Right to Information Act, 2005. CERSAI is a public authority within the meaning of Section 2(h)(d) of the RTI Act, being a body established by the Central Government under the SARFAESI Act, 2002 — an Act of Parliament. The information sought falls squarely within the definition of 'information' under Section 2(f) of the RTI Act — it includes records, documents, data material, held by or under the control of a public authority. CERSAI's own operating rules, technical standards, and transaction records are all 'information' within this definition.

Section 6(2) of the RTI Act unconditionally bars the CPIO from requiring any reason for requesting information. The Applicant is not required to disclose the purpose for which this information is sought.

BINDING SUPREME COURT AUTHORITY

1. **Reserve Bank of India v. Jayantilal N. Mistry (2016) 3 SCC 525 — The Supreme Court held that statutory regulatory bodies are public authorities under the RTI Act. Their operational rules, technical standards, and records maintained in the discharge of statutory functions are public information not exempt under Section 8. The Court specifically held that fiduciary or commercial confidentiality claims cannot be raised by a public authority in respect of its own rules and procedures.**
2. **Central Board of Secondary Education v. Aditya Bandopadhyay (2011) 8 SCC 497 — The right to information is a fundamental right. The CPIO bears the burden of establishing that a specific exemption applies. Information that does not fall within any exemption under Section 8 must be provided. Technical rules and operational procedures of a public authority cannot attract any Section 8 exemption.**
3. **Namit Sharma v. Union of India (2013) 1 SCC 745 — Section 6(2) unconditionally bars the CPIO from requiring reasons or justification for a request. Any attempt by the CPIO to require the Applicant to justify his request for CERSAI's own technical rules is contrary to law and grounds for a Section 20 complaint.**
4. **Raj Narain v. State of U.P. AIR 1975 SC 865 — The right to know about the functioning of public institutions and statutory registries is a fundamental facet of the right to free speech and expression under Article 19(1)(a) of the Constitution. A statutory registry's own operational rules are the very information that citizens have a constitutional right to access.**
5. **Manohar Lal Sharma v. Principal Secretary (2014) 2 SCC 532 — In matters involving public money and statutory compliance, the right to information must be given maximum effect and exemptions must be construed narrowly. CERSAI's operating**

rules directly affect the protection of public money in bank lending — disclosure is in the public interest.

PART VI — PRE-EMPTIVE RESPONSES TO ANTICIPATED OBJECTIONS

1. **OBJECTION ANTICIPATED: 'Transaction records of specific Asset IDs relate to third-party borrowers — Section 8(1)(e) — fiduciary relationship.' — RESPONSE: The information sought in Part IV Section C is about the mechanics of how CERSAI recorded a satisfaction or de-registration — specifically the date, the Transaction ID, and the identity of the filing entity. This is administrative and procedural information about CERSAI's own registry operations — not the borrower's commercial or financial affairs. The identity of which bank filed a satisfaction on which date is a matter of statutory compliance — not commercial confidentiality. The Supreme Court in RBI v. Jayantilal N. Mistry (2016) 3 SCC 525 expressly held that fiduciary exemptions cannot be claimed by statutory regulatory bodies in respect of their own compliance records.**
2. **OBJECTION ANTICIPATED: 'CERSAI's technical rules and portal design are internal operational matters not subject to RTI.' — RESPONSE: There is no exemption in the RTI Act for 'internal operational matters.' The only exemptions are those in Section 8 and Section 9 — none of which apply to technical rules and portal design of a statutory public registry. CERSAI's portal behaviour directly affects citizens' ability to access information from a statutory public register. Parliament created CERSAI to ensure transparency in security interest creation and satisfaction — citizens' ability to access that transparency information is therefore a matter of direct public interest, not internal administration.**
3. **OBJECTION ANTICIPATED: 'Database records of satisfied/de-registered security interests are not maintained / no longer accessible.' — RESPONSE: CERSAI is a statutory registry established by Parliament. The SARFAESI Act and CERSAI Regulations require CERSAI to maintain records of all security interests — including satisfied and de-registered ones — for prescribed periods. If CERSAI does not maintain records of satisfied security interests, that itself is a statutory non-compliance which the RTI response must state explicitly, along with the regulatory basis for non-maintenance. A simple 'not available' without legal basis would be a deficient response under Section 7(8) of the RTI Act.**
4. **OBJECTION ANTICIPATED: 'Information about specific Asset IDs may be transferred to the charge holder / borrower under Section 11.' — RESPONSE: Section 11 applies where the information requested relates to or supplied by a third party and the third party considers it confidential. The satisfaction or de-registration records for Asset IDs 200000693841 and 200000694206 are CERSAI's own registry records — created by CERSAI when a filing was made by a charge holder. They are not information 'supplied by' a third party in confidence. They are CERSAI's own administrative records of a statutory filing on a public register. Section 11 has no application.**
5. **OBJECTION ANTICIPATED: 'Information sought is too broad / requires creation of new information.' — RESPONSE: The Applicant is seeking information that CERSAI already holds in its database — the satisfaction/de-registration records for two specific Asset IDs identified by their CERSAI-assigned numbers. This is not a request for creation of new information — it is a request for existing database records uniquely identifiable by number. The RTI Act under Section 2(f) covers data material held by a public authority — CERSAI's database records fall squarely within this definition.**
6. **OBJECTION ANTICIPATED: 'Transfer to the charge holder bank for information about the satisfaction filing.' — RESPONSE: The Applicant seeks information from CERSAI's own database about CERSAI's own registry — not from the bank. CERSAI**

holds independent records of all satisfaction filings made on its portal. These records are held by CERSAI, not by the bank. A Section 6(3) transfer to the bank would be inappropriate and would not provide the CERSAI-side transaction records the Applicant seeks.

PART VII — PUBLIC INTEREST OVERRIDE — SECTION 8(2)

The Applicant expressly invokes Section 8(2) of the RTI Act. CERSAI was established by Parliament for one primary purpose: to prevent double-financing fraud by ensuring that all security interests over property are publicly registered and their satisfaction publicly recorded. The entire statutory purpose of CERSAI is transparency in the security interest ecosystem. A citizen's ability to know the rules by which the portal operates and to obtain the transaction records underlying a statutory registry is not merely a private right — it is the exercise of the very transparency that Parliament intended CERSAI to provide.

The public interest in disclosure of CERSAI's technical rules and transaction records is absolute. There is no competing private interest that could outweigh it. The CPIO is respectfully requested to consider this under Section 8(2) before rejecting any item of information.

PART VIII — RELIEF SOUGHT

15. **Written responses to all questions in Part IV, Sections A, B, C, and D above — within the statutory period of 30 days from receipt of this application under Section 7(1) of the RTI Act.**
16. **Certified extract or system-generated records from CERSAI's database for Asset IDs 200000693841 and 200000694206 — as sought in Part IV Section C Items 10 and 11 — to be provided by Speed Post.**
17. **Copies of all relevant CERSAI Regulations, circulars, notifications, and operational guidelines governing satisfaction and de-registration of security interests — as sought in Part IV Section A.**
18. **If additional fees are payable — an itemised fee notice under Section 7(3) of the RTI Act specifying the number of pages and fee per page.**
19. **If any item of information cannot be provided — a written order under Section 7(8) of the RTI Act stating: (a) the specific provision of Section 8 or Section 9 under which it is withheld; (b) the reasons for that decision; and (c) the particulars of the First Appellate Authority including name, designation, and address.**

DECLARATION

I, Neeraj Singh Mohnia, declare that I am a citizen of India. The information is sought for lawful purposes. I am not seeking any information that is prohibited under the RTI Act. I undertake to pay additional fees as lawfully determined by the CPIO.

Date: 3rd June 2026

Place: Mumbai



Neeraj Singh Mohnia
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FIRST APPELLATE AUTHORITY NOTE: If no response is received within 30 days, or if the response is unsatisfactory, the Applicant will file a First Appeal to the First Appellate Authority under Section 19(1) of the RTI Act, followed by a Second Appeal to the Central Information Commission under Section 19(3). The Applicant may also seek penalty under Section 20 for any deficient or blanket denial response.